

INFORMATION OBLIGATION – GDPR OF THE STREFA STARTU FOUNDATION

Effective as of: 01.04.2025

In accordance with Articles 13 and 14 of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 (commonly referred to as GDPR), we would like to inform you about the principles of personal data processing in our Foundation and the rights you are entitled to.

1. Data Controller

The data controller is:

Foundation Strefa Startu,

ul. Wschodnia 1A, 99-300 Kutno,

e-mail: rodo@strefastartu.pl,

KRS: 0001152283, NIP: 7752676034, REGON: 540754318.

2. Data Protection Officer Contact Details

The Foundation is not required to appoint a Data Protection Officer under Article 37 of the GDPR. For matters related to data protection, please contact the Administrator via e-mail: rodo@strefastartu.pl.

3. Purposes, Legal Bases, and Retention Period of Personal Data Processing

A) Beneficiaries of programs, projects, and incubation services:

- **Purpose:** conclusion and performance of a contract, provision of services, incubation support.
Legal basis: Art. 6(1)(b) GDPR.
Retention: for the duration of the contract and then for the limitation period of any claims.
 - **Purpose:** monitoring, quality control, project reporting.
Legal basis: legitimate interest of the controller (Art. 6(1)(f) GDPR); for direct marketing via electronic means, national laws also apply (e.g. Articles 10 and 172 of the Telecommunications Law and the Act on Electronic Services).
 - **Purpose:** fulfillment of legal obligations (e.g. tax, accounting, reporting).
Legal basis: Art. 6(1)(c) GDPR.
 - **Purpose:** protection and pursuit of legal claims.
Legal basis: Art. 6(1)(f) GDPR.
 - **Purpose:** additional activities requiring consent (e.g. newsletter, event photos).
Legal basis: Art. 6(1)(a) GDPR.
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B) Clients and individuals representing companies:

Analogous purposes and legal bases as above, considering business relationships (e.g. cooperation agreement, purchase of services).

C) Contractors, representatives, personnel:

- **Purpose:** verification of authorizations, representation of contractor, communication on contractual matters.
Legal basis: Art. 6(1)(b) and (f) GDPR.
- **Data not obtained directly:** The Foundation may process contact details of individuals indicated by the contractor.

D) Newsletter subscribers, recipients of marketing information:

- **Purpose:** sending commercial and promotional information via e-mail or phone.
Legal basis: consent (Art. 6(1)(a)) or legitimate interest (Art. 6(1)(f)).
Retention: until consent is withdrawn or objection is submitted.

E) Website users:

- **Purpose:** improving website functionality, ensuring security, traffic analysis.
Legal basis: Art. 6(1)(f) GDPR.
Details are included in the privacy and cookie policies.

F) Individuals contacting the Foundation:

- **Purpose:** responding to phone, e-mail, or form inquiries.
Legal basis: Art. 6(1)(f) GDPR.

4. Categories of Processed Data

Depending on the relationship, the following data may be processed:

- identification data (name, surname, PESEL, position),
- contact data (e-mail, phone, address),
- company data (NIP, REGON, company details),
- contract and cooperation history data,
- activity data on the website (cookies, logs),
- image data (e.g. event photos).

5. Data Recipients

Data may be shared with:

- entities processing data on behalf of the Foundation (e.g. IT providers, accounting, law firms),
- entities providing services to the Foundation (banks, couriers, printers),
- public authorities, courts, oversight institutions,
- other controllers (e.g. project funding institutions, project partners).

In some cases, data may be transferred outside the European Economic Area (EEA) – only with adequate protection measures.

6. Automated Decision-Making / Profiling

Personal data may be used for profiling (e.g. newsletter recipient segmentation), but is not processed in a way that produces legal effects or similarly significant impacts – in accordance with Art. 22(1) GDPR. In such cases, the Foundation provides individual notice.

7. Rights of Data Subjects

You have the right to:

- access your data (Art. 15 GDPR),
 - rectify them (Art. 16),
 - erase them ("right to be forgotten", Art. 17),
 - restrict processing (Art. 18),
 - data portability (Art. 20),
 - object to processing (Art. 21),
 - withdraw consent at any time (Art. 7(3)),
 - lodge a complaint with the President of the Personal Data Protection Office.
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8. Voluntary Data Provision

In most cases, providing data is voluntary but necessary to achieve the intended purpose (e.g. contract signing, receiving a response, participating in a project).
